

CONTRACTOR AGREEMENT

PLEASE READ THIS CONTRACTOR AGREEMENT (“AGREEMENT”) CAREFULLY. THIS AGREEMENT CONTAINS THE EXCLUSIVE TERMS BETWEEN ALIGNERR LLC (“CLIENT”) AND YOU (YOU, TOGETHER WITH ANY ENTITY ON BEHALF OF WHICH YOU ENTER INTO THIS AGREEMENT, “CONTRACTOR”).

BY CLICKING “I ACCEPT” BELOW OR BY PROVIDING SERVICES IN THE CAPACITY OF A CONTRACTOR, YOU WILL CREATE A LEGALLY ENFORCEABLE CONTRACT AND AGREE TO BE BOUND BY THESE TERMS WITHOUT MODIFICATION. YOU REPRESENT AND WARRANT THAT YOU ARE AUTHORIZED TO EXECUTE THIS AGREEMENT (AND THAT IF YOU ARE EXECUTING THIS AGREEMENT ON BEHALF ON AN ENTITY YOU HAVE ALL RIGHTS AND AUTHORITY NECESSARY TO DO SO).

IF YOU DO NOT OR CANNOT AGREE TO ALL OF THE FOLLOWING, YOU MAY NOT ENGAGE WITH US OR PROVIDE ANY SERVICES TO US IN ANY MANNER AND THE CLIENT WILL HAVE NO OBLIGATIONS WHATSOEVER TO YOU OR ANY ENTITY YOU PURPORT TO REPRESENT.

From the date of execution hereof (“Effective Date”), Contractor and Client agree as follows:

1. Services; Payment; No Violation of Rights or Obligations.

Contractor agrees to undertake and complete the tasks selected by Contractor on and through app.alignerr.com (the “Services”), in accordance with the specifications and timelines relating to those Services set forth in the labeling task descriptions therefore (each, a “Task Description”). As the only consideration due Contractor regarding the subject matter of this Agreement, Client will pay Contractor as (and only as) expressly stated in the Task Description (“Fees”). Unless otherwise specifically agreed upon by Client in writing (and notwithstanding any other provision of this Agreement), all activity relating to Services will be performed by and only by Contractor or by employees of Contractor who have been approved in writing in advance by Client. Contractor agrees that it will not (and will not permit others to) violate any agreement with or rights of any third party or, except as expressly authorized by Client in writing hereafter, use or disclose at any time Contractor’s own or any third party’s confidential information or intellectual property in connection with the Services or otherwise for or on behalf of Client.

2. Ownership; Rights; Proprietary Information; Publicity.

- (a) Client shall own all right, title and interest to any work product created by Contractor pursuant to this agreement, including, but not limited to patent rights, copyrights, trade secret rights, mask work rights, trademark rights, *sui generis* database rights and all other intellectual property rights of any sort throughout the world relating to any and all inventions (whether or not patentable), works of authorship, mask works, designations, designs, know-how, ideas and information made or conceived or reduced to practice, in whole or in part, by or for or on behalf of Contractor during the term of this Agreement

that relate to the subject matter of or arise out of or in connection with the Services or any Proprietary Information (as defined below) (collectively, "Inventions") and Contractor will promptly disclose and provide all Inventions to Client. All Inventions are work made for hire to the extent allowed by law and, in addition, Contractor hereby makes all assignments necessary to accomplish the foregoing ownership.

- (b) Contractor shall assist Client, at Client's expense, to further evidence, record and perfect such assignments, and to perfect, obtain, maintain, enforce and defend any rights assigned. Contractor hereby irrevocably designates and appoints Client as its agent and attorney-in-fact, coupled with an interest, to act for and on Contractor's behalf to execute and file any document and to do all other lawfully permitted acts to further the foregoing with the same legal force and effect as if executed by Contractor and all other creators or owners of the applicable Invention.
- (c) Contractor agrees that all Inventions and all other business, technical and financial information (including, without limitation, the identity of and information relating to customers or employees) developed, learned or obtained by or for or on behalf of Contractor during the period that Contractor is to be providing the Services that relate to Client or the business or demonstrably anticipated business of Client or in connection with the Services, or that are received by or for Client in confidence, constitute "Proprietary Information." Contractor shall hold in confidence and not disclose or, except in performing the Services, use any Proprietary Information. However, Contractor shall not be obligated under this paragraph with respect to information Contractor can document is or becomes readily publicly available without restriction through no fault of Contractor. Upon termination or as otherwise requested by Client, Contractor will promptly provide to Client all items and copies containing or embodying Proprietary Information, except that Contractor may keep its personal copies of its compensation records and this Agreement. Contractor also recognizes and agrees that Contractor has no expectation of privacy with respect to Client's telecommunications, networking or information processing systems (including, without limitation, stored computer files, email messages and voice messages) and that Contractor's activity, and any files or messages, on or using any of those systems may be monitored at any time without notice.
- (d) To the extent allowed by law, any license granted Client hereunder includes all rights of paternity, integrity, disclosure and withdrawal and any other rights that may be known as or referred to as "moral rights," "artist's rights," "droit moral," or the like. Furthermore, Contractor agrees that notwithstanding any rights of publicity, privacy or otherwise (whether or not statutory) anywhere in the world, and without any further compensation,
 - (i) Client may and is hereby authorized to (and to allow others to) use Contractor's name in connection with promotion of its business, products or services and
 - (ii) and if the Services include (or Contractor otherwise provides) any acting, singing, dancing, voice, modeling, posing or similar activity, Company also may and is hereby authorized to (and to allow others to) use, reproduce, disseminate, alter and otherwise exploit any results of such activity (including, without limitation, any manner in which such activity may be recorded or remembered or modified) or derivatives or extensions or imitations thereof in any manner Company sees fit. To the extent any of the foregoing is ineffective under

applicable law, Contractor hereby provides any and all ratifications and consents necessary to accomplish the purposes of the foregoing to the extent possible. Contractor will confirm any such ratifications and consents from time to time as requested by Client. If any other person is in any way involved in any Services, Contractor will obtain the foregoing ratifications, consents and authorizations from such person for Client's exclusive benefit.

- (e) If any part of the Services or Inventions or information provided hereunder is based on, incorporates, or is an improvement or derivative of, or cannot be reasonably and fully made, used, reproduced, distributed and otherwise exploited without using or violating technology or intellectual property rights owned by or licensed to Contractor (or any person involved in the Services) and not assigned hereunder, Contractor hereby grants Client and its successors a perpetual, irrevocable, worldwide royalty-free, non-exclusive, sublicensable right and license to exploit and exercise all such technology and intellectual property rights in support of Client's exercise or exploitation of the Services, Inventions, other work or information performed or provided hereunder, or any assigned rights (including any modifications, improvements and derivatives of any of them).

3. Warranties and Other Obligations. Contractor represents, warrants and covenants that: (i) the Services will be performed in a professional and workmanlike manner and that none of such Services nor any part of this Agreement is or will be inconsistent with any obligation Contractor may have to others; (ii) all work under this Agreement shall be Contractor's original work and none of the Services or Inventions nor any development, use, production, distribution or exploitation thereof will infringe, misappropriate or violate any intellectual property or other right of any person or entity (including, without limitation, Contractor); (iii) Contractor has the full right to allow it to provide Client with the assignments and rights provided for herein (and has written enforceable agreements with all persons necessary to give it the rights to do the foregoing and otherwise fully perform this Agreement and, in addition, if applicable, Contractor will have each person who may be involved in any way with, or have any access to, any Services or Proprietary Information enter into (prior to any such involvement or access) a binding agreement for Client's benefit that contains provisions at least as protective as those contained herein); (iv) Contractor shall comply with all applicable laws and Client safety rules in the course of performing the Services; (v) if Contractor's work requires a license, Contractor has obtained that license and the license is in full force and effect; and (vi) neither this Agreement nor the performance of or exercise of rights under this Agreement is restricted by, in conflict with, ineffective under, requires registration or approval or tax withholding under, or affects Client's proprietary rights under, or will require any termination or expiration payment, compensation or indemnification or any compulsory licensing under, any law or regulation of any country within which Contractor is located and Contractor will not make any claim to the contrary (Client is relying on this representation and warranty, among other provisions of this Agreement, in entering this Agreement and would not enter this Agreement in its absence).

4. Termination. If either party breaches a material provision of this Agreement, the other party may terminate this Agreement upon ten (10) days' notice, unless the breach is cured within the notice period. Client also may terminate this Agreement at any time,

with or without cause, upon fifteen (15) days' notice, but, if (and only if) such termination is without cause, Client shall upon such termination pay Contractor all unpaid, undisputed amounts due for the Services completed prior to notice of such termination. Sections 2 (subject to the limitations set forth in Section 2.c) through 9 of this Agreement and any remedies for breach of this Agreement shall survive any termination or expiration. Client may communicate the obligations contained in this Agreement to any other (or potential) client or employer of Contractor.

5. Relationship of the Parties; Independent Contractor; No Employee Benefits. Notwithstanding any provision hereof, Contractor is an independent contractor and is not an employee, agent, partner or joint venturer of Client and shall not bind nor attempt to bind Client to any contract. Contractor shall accept any directions issued by Client pertaining to the goals to be attained and the results to be achieved by Contractor, but Contractor shall be solely responsible for the manner and hours in which the Services are performed under this Agreement. Contractor shall not be eligible to participate in any of Client's employee benefit plans, fringe benefit programs, group insurance arrangements or similar programs. Client shall not provide workers' compensation, disability insurance, Social Security or unemployment compensation coverage or any other statutory benefit to Contractor. Contractor shall comply at Contractor's expense with all applicable provisions of workers' compensation laws, unemployment compensation laws, federal Social Security law, the Fair Labor Standards Act, federal, state and local income tax laws, and all other applicable federal, state and local laws, regulations and codes relating to terms and conditions of employment required to be fulfilled by employers or independent contractors. Contractor will ensure that its employees, contractors and others involved in the Services, if any, are bound in writing to the foregoing, and to all of Contractor's obligations under any provision of this Agreement, for Client's benefit and Contractor will be responsible for any noncompliance by them. Contractor agrees to indemnify Client from any and all claims, damages, liability, settlement, attorneys' fees and expenses, as incurred, on account of the foregoing or any breach of this Agreement or any other action or inaction by or for or on behalf of Contractor.

6. Assignment. This Agreement and the services contemplated hereunder are personal to Contractor and Contractor shall not have the right or ability to assign, transfer or subcontract any rights or obligations under this Agreement without the written consent of Client. Any attempt to do so shall be void. Client may fully assign and transfer this Agreement in whole or part.

7. Notice. All notices under this Agreement shall be in writing and shall be deemed given when personally delivered, or three days after being sent by prepaid certified or registered U.S. mail to the address of the party to be noticed as set forth herein or to such other address as such party last provided to the other by written notice.

8. Miscellaneous. Any breach of Section 2 or 3 will cause irreparable harm to Client for which damages would not be an adequate remedy, and therefore, Client will be entitled to injunctive relief with respect thereto in addition to any other remedies. The failure of either party to enforce its rights under this Agreement at any time for any period shall not be construed as a waiver of such rights. No changes, additions, modifications or waivers to this Agreement will be effective unless in writing and signed by both parties. In the event that any

provision of this Agreement shall be determined to be illegal or unenforceable, that provision will be limited or eliminated to the minimum extent necessary so that this Agreement shall otherwise remain in full force and effect and enforceable. This Agreement shall be governed by and construed in accordance with the laws of the State of California without regard to the conflicts of laws provisions thereof. In any action or proceeding to enforce rights under this Agreement, the prevailing party will be entitled to recover costs and attorneys' fees. Headings herein are for convenience of reference only and shall in no way affect interpretation of the Agreement. This Agreement represents the entire understanding and agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements between the parties with respect to the subject matter hereof.

9. Arbitration. Any dispute or claim arising out of or related to this Agreement, or breach or termination thereof, will be finally settled by binding arbitration in the County of San Francisco, California, United States pursuant to the International Arbitration Rules and Procedures of the Judicial Arbitration and Mediation Service, Inc. ("JAMS") then in effect by a single JAMS arbitrator with substantial experience in resolving complex commercial contract disputes. Judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof. The arbitrator will apply California law to the merits of any dispute or claim, without reference to rules of conflict of law, and shall have the authority to award any and all available remedies, including legal and equitable relief. The parties may apply to any court of competent jurisdiction for a temporary restraining order, preliminary injunction, or other interim or conservatory relief, as necessary, without breach of this arbitration agreement and without any abridgment of the powers of the arbitrator. The arbitral proceedings and all pleadings and written evidence shall be in the English language. Any written evidence originally in a language other than English shall be submitted in English translation accompanied by the original or true copy thereof. The prevailing party will be entitled to receive from the non-prevailing party all costs, damages and expenses, including reasonable attorneys' fees, incurred by the prevailing party in connection with that action or proceeding, whether or not the controversy is reduced to judgment or award. The prevailing party will be that party who may be fairly said by the arbitrator(s) to have prevailed on the major disputed issues. Contractor hereby consents to the arbitration in the State of California in the county of San Francisco.

10. NOTICE: This agreement does not affect any immunity under 18 USC Sections 1833(b) (1) or (2), which read as follows (note that for purposes of this statute only, individuals performing work as contractors or consultants are considered to be employees):

11. (1) An individual shall not be held criminally or civilly liable under any Federal or State trade secret law for the disclosure of a trade secret that (A) is made (i) in confidence to a Federal, State, or local government official, either directly or indirectly, or to an attorney; and (ii) solely for the purpose of reporting or investigating a suspected violation of law; or (B) is made in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal.

12. (2) An individual who files a lawsuit for retaliation by an employer for reporting a suspected violation of law may disclose the trade secret to the attorney of the individual and use the trade secret information in the court

proceeding, if the individual (A) files any document containing the trade secret under seal; and (B) does not disclose the trade secret, except pursuant to court order.